

STEP ONE, ALWAYS: CONFIRM THE DISCHARGE, THE RESTITUTION, AND WHETHER THE ORDER ISSUED

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

THE COURT OWES YOU THIS - YOU DO NOT PETITION FOR IT. On fulfilment of the terms of probation and of the deferred sentence agreement, the court strikes the adjudication of guilt and discharges you, and 13 V.S.A. Sec. 7041(e) requires the record of the criminal proceedings to be expunged on discharge from probation, absent a finding of good cause by the court. Nothing is filed and nothing is paid: the section imposes no petition fee, and no chapter 230 filing fee applies because this is not a chapter 230 petition.

SO THE WORK IS TO CONFIRM, IN THIS ORDER:

STEP ONE. Confirm you were DISCHARGED from probation and the adjudication of guilt was STRUCK. Ask the clerk of the Criminal Division of the Superior Court that entered the deferred sentence for the discharge order - it establishes the date the Sec. 7041(e) duty attached.

STEP TWO. Confirm RESTITUTION IS PAID IN FULL. The record is not expunged until restitution has been paid in full, however long that takes - this is a bar in the statute, not a paperwork step, and it is the fact that most often explains a missing order. Ask the Restitution Unit of the Vermont Center for Crime Victim Services for a current balance statement.

STEP THREE. Check whether the expungement order ISSUED. Complete Form 200-00331, Request for Criminal Record Search, and submit it to the Criminal Division of the Superior Court in the county. If the case no longer shows, the order issued and you are done.

IF ALL THREE CHECKS PASS AND THE CASE STILL SHOWS: the order may not have issued, and the written-request page of this packet applies. How long courts take in practice to enter the order after discharge is not established by any source this packet is built from - before concluding the order is missing rather than pending, ask the Criminal Division clerk how long entry typically takes.

IF THE DEFERRED SENTENCE WAS NOT FULFILLED - you were not discharged, or the adjudication was not struck - this route is not available, and the request page must not be sent.

Routes: obligation:unit:VT:vt_exp_deferred_sentence:vt-deferred-automatic-and-verification ;
obligation:unit:VT:vt_exp_deferred_sentence:vt-deferred-written-request

WRITTEN REQUEST FOR ENTRY OF THE EXPUNGEMENT ORDER UNDER 13 V.S.A. SEC. 7041(E)

(Send this request ONLY where all three checks on the verification page passed and the case still shows on the record search. It is submitted under the EXISTING docket of the deferred-sentence case, not as a new case.)

TO: The Criminal Division of the Vermont Superior Court,
..... Unit (county)
(the county whose Criminal Division entered the deferred sentence)

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
1188 Upper Notch Crossing Road, Apartment 14B, Brattleboro, Vermont 05301-2214
Telephone: (802) 555-0199 ext. 4417
Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Docket number of the deferred-sentence case:
.....

RE: WRITTEN REQUEST FOR ENTRY OF THE EXPUNGEMENT ORDER UNDER 13 V.S.A. Sec. 7041(e)

To the court:

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, was the respondent in the deferred-sentence case identified by the docket number above, in which this Court entered a deferred sentence.

2. I was discharged from probation, and the adjudication of guilt was struck, on this date (from the discharge order):
.....

3. All restitution has been paid in full. The date restitution was satisfied, from the Restitution Unit's statement:
.....

4. I checked my record through a criminal record search (Form 200-00331) with this Court, and the case still appears, so it appears the expungement order has not issued.

5. Section 7041(e) of Title 13 provides that the record of the criminal proceedings shall be expunged on discharge from probation, absent a finding of good cause by the court, and that the court shall issue an order to expunge all records and files related to the arrest, citation, investigation, charge, adjudication of guilt, criminal proceedings and probation.

6. I therefore request that the Court enter the expungement order Sec. 7041(e) requires. This request makes no argument about good cause and does not assert that no finding of good cause exists; whether to

make such a finding is for the Court.

DATE SIGNATURE

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

(You sign and date this request personally. Nothing on this page is signed or dated for you. No fee is enclosed and none is owed. Notarization is not required.)

Routes: obligation:unit:VT:vt_exp_deferred_sentence:vt-deferred-automatic-and-verification ;
obligation:unit:VT:vt_exp_deferred_sentence:vt-deferred-written-request

WHEN THIS IS NOT YOURS TO FINISH ALONE, AND WHAT VERMONT'S WORDS MEAN NOW

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

STOP AND TAKE THIS TO A LAWYER OR LEGAL-AID OFFICE, INSTEAD OF SENDING THE REQUEST, IF ANY OF THESE IS TRUE:

- the court has made, or signals it will make, a finding of good cause against expungement - this packet drafts no argument about good cause, deliberately, and that conversation needs counsel;
- the offence requires sex offender registration - Sec. 7041(h) requires VCIC to keep a confidential special index of deferred sentences for such offences, accessible only by the VCIC director and one designated staff person for presentence investigation purposes, and that index survives the expungement;
- you were not in fact discharged, or the adjudication of guilt was not struck - the deferred sentence was not fulfilled and this route is not available;
- restitution remains outstanding - the record cannot be expunged until it is paid in full, however long that takes;
- any immigration question is involved.

WHAT VERMONT'S WORDS MEAN NOW. After 1 July 2025, Vermont is a sealing state, not an expungement state: sealing moves records into a confidential file without destroying them, while expungement removes records from accessible databases and destroys the paper file, and after Act 60 expungement survives mainly for conduct that is no longer criminal. THIS relief is different: it arises under chapter 221, not chapter 230, and the statute's own word for what the court owes you on discharge from a deferred sentence is expunge - which is why these pages use it for this relief and no other.

ONE FEDERAL CAVEAT. Expunged and sealed records may still appear in a federal criminal background check. Vermont relief does not reach federal records, even though VCIC notifies the FBI's National Crime Information Center.

AFTER THE ORDER ISSUES. The court sends copies of the expungement order to each agency, department or official named in it - you do not deliver them.

Routes: obligation:unit:VT:vt_exp_deferred_sentence:vt-deferred-automatic-and-verification ;
obligation:unit:VT:vt_exp_deferred_sentence:vt-deferred-written-request